

Mohammad Zubair v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 21 October 2024 · 2024:AHC:166970-DB · WRIT - C No. - 27942 of 2024 · **Petition disposed of as infructuous; liberty to challenge final assessment.**

HEADNOTE

A writ challenging a Section 126 provisional assessment notice is rendered infructuous once the licensee has passed a final assessment order. The petition was disposed of with liberty to the consumer to challenge the final assessment independently if aggrieved.

FACTUAL SUMMARY

Mohammad Zubair filed a writ petition in the Allahabad High Court challenging a notice of provisional assessment dated 30 May 2024 issued under Section 126 of the Electricity Act, 2003 and Clauses 6.8 and 8.1 of the Electricity Supply Code, 2005. During the pendency of the writ, counsel for the Electricity Department placed on record a final assessment order dated 31 August 2024 and supplied a copy to the petitioner. The Court did not examine the validity of either assessment on merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

provisional-assessment-challenge-infructuous-after-final-assessment

HOLDING

Where a writ challenges a notice of provisional assessment dated 30 May 2024 under Section 126 of the Electricity Act, 2003 and Clauses 6.8 and 8.1 of the Electricity Supply Code, 2005, and the licensee during pendency produces a final assessment order dated 31 August 2024, the challenge to the provisional notice is rendered infructuous. The petition is disposed of with liberty to challenge the final assessment, if aggrieved, in independent proceedings. ¶ 1-4

PRINCIPLE TAGS

opportunity-before-final-assessment A writ challenging a Section 126 provisional assessment notice is rendered infructuous once the licensee has passed a final assessment order. The petition was disposed of with liberty to the consumer to challenge the final assessment independently if aggrieved. ¶ 1-4

s126-procedural-strictness-notice-and-hearing A writ challenging a Section 126 provisional assessment notice is rendered infructuous once the licensee has passed a final assessment order. The petition was disposed of with liberty to the consumer to challenge the final assessment independently if aggrieved. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 30 MAY 2024 UNDER SECTION 126 AND CLAUSES 6.8 AND 8.1

Challenge held infructuous; merits not examined. ¶ 1-3

NOT DECIDED — VALIDITY OF THE FINAL ASSESSMENT ORDER DATED 31 AUGUST 2024

Liberty reserved to challenge independently if aggrieved. ¶ 4

